

OBSERVATIONS,

*Pour les Sous-fermiers des Messageries
sur les articles préliminaires au bail des
messageries à passer le premier janvier
prochain, proposés à l'Assemblée Na-
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OBSERVATIONS, POUR LES SOUS-FERMIERS DES MESSAGERIES
SUR LES ARTICLES PRÉLIMINAIRES AU BAIL DES MESSAGERIES

OBSERVATIONS,

Pour les Sous-fermiers des Messageries sur les articles préliminaires au bail des messageries à passer le premier janvier prochain, proposés à l'Assemblée Nationale par les comités réunis.

Il a été proposé le vendredi 17 décembre, par les comités réunis, trois articles préliminaires au bail à passer au premier janvier prochain pour la ferme des messageries.

Le second de ces trois articles est ainsi conçu :

« Pour assurer le service des postes et messageries, et libérer le trésor public des indemnités prévues par l'article 7 du décret du 22 août, qui pourroient être prétendues par les sous-fermiers du bail de Durdan et autres entrepreneurs, tant du service des postes, que de celui des messageries ; nonobstant les dispositions de l'article 7 dudit décret, lesdits sous-fermiers et entrepreneurs continueront leur service actuel pendant trois mois, à compter du premier janvier prochain, s'ils en sont requis par ceux qui prendront le nouveau bail ; et de leur côté ceux-ci seront tenus d'entretenir lesdits sous-baux et entreprises, quelque soit leur durée, à moins que lesdits sous-fermiers ou entrepreneurs ne veuillent renoncer auxdits sous-baux ou entreprises, ce dont ils auront la liberté, pour, dès le premier avril prochain, en prévenant les nouveaux fermiers de leurs intentions deux mois à l'avance. »

Cet article déroge entièrement aux décrets de l'Assemblée Nationale : ces décrets ont supprimé les privilèges qui formoient la base des baux et sous-baux des messageries ; ils ont rendus à tous les voituriers la faculté de transporter des voyageurs, des espèces ou matières d'or et d'argent, et des paquets au-dessous du poids de cinquante livres ; par une suite nécessaire,

ils ont cassé et résilié les baux et sous-baux des messageries, en astreignant néanmoins les fermiers et sous-fermiers, ainsi que les entrepreneurs de relais, à maintenir le service public dont ils étoient chargés, jusqu'au 31 décembre 1790. Par une suite de la justice de l'Assemblée Nationale, le décret portoit : que les fermiers, sous fermiers et entrepreneurs de relais seroient indemnisés, tant pour la cassation de leurs baux et traités, que pour les pertes résultantes de la liberté que les voituriers particuliers s'étoient donné depuis le mois de juillet 1789 de prévenir l'effet des décrets du mois d'août 1790.

Cet article astreint les sous-fermiers à maintenir le service public pendant trois mois, à compter du premier janvier 1791, et leur laisse la faculté de conserver leurs sous-baux et traités jusqu'à leur expiration, moyennant quoi *le trésor public sera libéré des indemnités décrétées le 22 août dernier.*

Peut-on donner comme indemnité la nécessité de maintenir le service des messageries pendant les mois de janvier, février et mars, ces trois mois sont onéreux tant par la difficulté des routes, que par le petit nombre de places qui sont occupées dans la saison rigoureuse de l'hiver ; cette obligation est donc une charge réelle dont les sous-fermiers seront encore grévés, et c'est une nouvelle perte à ajouter à celles qu'ils éprouvent depuis le mois de juillet 1789, que leurs privilèges ont été anéantis par le fait ; on ne peut leur donner une occasion de perte pour une indemnité ; la faculté de continuer leurs baux jusqu'à l'expiration, ne peut également être dans aucun cas une indemnité ; on leur avoit affermé le privilège exclusif de conduire les voyageurs, l'or et l'argent, et les paquets au-dessous de cinquante livres ; les décrets du mois d'août 1790, ont supprimé ce privilège ; il s'est établi, en conséquence de cette suppression, des voitures sur toutes les routes pour les distances de 30 et 40 lieues de Paris ; la continuation de leurs baux devient donc impraticable ; ces baux étoient fondés sur des privilèges qu'il faudroit rétablir en entier, pour ôter lieu à toute indemnité en raison de la cassation de ces baux : le service de messagerie qui pourra être établi par la suite, n'est plus celui qui leur avoit été affermé ; la constitution de leurs baux seroit une nouvelle occasion de perte ; comment peut-on la leur proposer au lieu des indemnités décrétées par l'assemblée nationale ? On le répète, cette constitution ne pourroit annuler les indemnités décrétées,

qu'autant qu'ils jouiroient de tous les privilèges qui leur avoient été afferlés ; dans ce cas, qui devient impossible puisqu'il faudroit changer le décret, les sous-fermiers n'auroient à réclamer d'indemnité que pour l'interruption de leur jouissance ; dans ce moment ils réclament de la justice de l'assemblée nationale, dédommagement pour la cassation de leurs baux, pour les pertes résultantes de la non-jouissance de leurs privilèges depuis le mois de juillet 1789, jusqu'au 31 décembre prochain ; ils se fondent sur cette même justice pour être également dédommagés, s'ils sont forcés à continuer leur service pendant les trois premiers mois de 1790, et sur-tout pour la reprise de leurs voitures, objet très-important, et qui fait toute leur fortune, et le gage des créanciers qui leur ont fourni les fonds nécessaires à leurs exploitations ; ces voitures ne pouvant servir que pour les messageries, seroient une perte totale.

Le même article, en annonçant que les sous-fermiers auront la faculté, pour leur tenir lieu d'indemnité, de continuer leurs baux jusqu'à l'expiration, ne dit pas à quel prix : ce ne peut être à l'ancien, puisqu'il ne peut exister depuis le mois de juillet 1789 ; ce ne peut être cependant au prix qui sera fixé pour le bail général ; les soumissionnaires de ce bail général ne peuvent faire loi pour les sous-fermiers, surtout lorsqu'il s'agit d'un changement total dans l'exploitation des messageries ; si la compagnie qui obtiendra le bail général se trompe dans sa spéculation, les sous-fermiers doivent-ils en être la victime ? Leurs indemnités ont été décrétées, elles doivent être indépendantes des offres sages ou folles qui seront faites pour l'exploitation des messageries.

On a confondu dans lesdits articles préliminaires, les sous-fermiers et les entrepreneurs de relais ; la position des uns et des autres est absolument différente ; l'entrepreneur de relais est seulement chargé de fournir à un prix convenu des chevaux pour un nombre déterminé de voitures ; les suppressions prononcées par les décrets du mois d'août dernier, ne lui portent aucun préjudice, dès qu'il conduit son nombre de voitures au prix convenu ; s'il continue de les conduire jusqu'à l'expiration de son traité, il n'a rien perdu et ne peut rien réclamer ; mais le fermier ou sous-fermier de messagerie, qui doit entretenir ce traité, est obligé, malgré la suppression de tous les privilèges, d'entretenir le même nombre de voitures et de la même forme jusqu'à l'expiration des traités de conduite ; la concurrence des

voituriers particuliers diminue les chargemens en voyageurs et marchandises, il ne faut pas moins payer l'entrepreneur ; ainsi le sous fermier est encore la victime de l'économie qui résultera au trésor public du maintien des traités de relais ; ces deux genres de services ne peuvent être traités de même ; que les voitures fassent ou non de la recette, l'entrepreneur des relais est payé de sa course par le fermier ou sous-fermier de messagerie, et ce dernier ne peut ni changer, ni diminuer son service tant que ce traité subsistera ; cette seule clause rendra très-onéreuse pendant l'année 1791 l'entreprise des messageries ; les fermiers et sous-fermiers perdront plus qu'il n'en auroit coûté au trésor public pour indemniser les entrepreneurs de relais, qui n'ont d'autres instrumens pour leur exploitation que des chevaux d'une défaite facile, et dont l'emploi peut journellement se faire avec avantage dans le nouveau service à établir.

A PARIS, de l'Imprimerie de CHALON, rue du Théâtre Français. 1790.

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ARTICLES PRÉLIMINAIRES AU BAIL DES MESSAGERIES ***

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